PURCHASE ORDER AMENDMENT

L&T Hydrocarbon Engineering Limited

2nd floor, Annapurna Complex, 559, Lewis Road,
Bhubaneswar, Khordha - 751014 Odisha India

PO NO.
:Petrochemicals/75000-65110/AG
PO Date : 05.02.2020
Contact Person : Ankit Garg
Contact Telephone :

AMENDMENT NO.: 001
Amendment Date: 08.12.2020
Contact Email:

To,	YOUR REFERENCE		PRICING & TAXATION:
VENDOR CODE:1012558 Nihva Technologies Pvt Ltd Plot NO 184,First Floor,G Block Above Renault Showroom Pompri-Chinchwad 411019 Maharashtra India Telephone: 8350570333 ATTN:Vivek **GSTIN NO.: 27AAECN0437H1ZM**	SQT19-20.2/03.02.2020 For other references refer annexure		Please refer details in Annexure I. **PAYMENT TERMS:** Please refer details in Annexure II.

Please arrange to provide the goods / services described below strictly as per terms and conditions mentioned in this Purchase Order and its enclosure/s listed below.

GENERAL DESCRIPTION	CURRENCY	TOTAL VALUE (PRICE)
Purchase Order (PO) for supply of Dock Leveler with Mandatory Spares which includes but not limited to design, detail engineering, submission of documentation as detailed in the VDR, procurement, manufacturing, inspection & testing as per approved Inspection & Test Plan (ITP), Coordination with Third Party Inspection Agency (TPIA), obtaining all statutory approvals/ certifications, painting, supply, packing and loading on transporter's vehicle for Ethylene Glycol Project (LSTK-2 Package) for M/s Indian Oil Corporation Limited (IOCL).	INR	4,73,800.00 Four Lakh Seventy Three Thousand Eight Hundred only.
	Value (Price) Basis: EXW , Pune Basis	

Kindly send all your correspondence regarding this order in duplicate. All items and conditions below and on the reverse are to be strictly complied with.

DISPATCH DETAILS: For details refer enclosures. Materials / Services to be dispatched only after receiving Dispatch Clearance from L&T Hydrocarbon Engineering Limited

Place of Supply / Destination: Odisha

LTHE GST REGISTRATION NO.: 21AABCL5967D2ZP **CIN: U11200MH2009PLC191426**

DOCUMENTATION : Please refer details in Annexure II

BILLING : For details refer enclosures. Bills submitted against this Purchase Order must contain Purchase Order No. & Date, Purchase Order Item No. and Vendor code.

PROJECT: IOCL O&U - LSTK 2

Release Code: 11
L.C.: 08.12.2020 12:12:42
Printed On : 08.12.2020 12:13:37

For L&T Hydrocarbon Engineering Limited

9/12/20

Asit Kumar Mishra
JOINT GENERAL MANAGER

Registered Office : L&T House, Ballard Estate, Mumbai : 400 001, INDIA
*- Refer Annexure for Details

Deepak Agrawal
Digitally signed by Deepak Agrawal
email=deepak.agrawal@larsentoubro.com, c=IN
Date: 2020.12.09 10:03:54 +05'30'

PURCHASE ORDER AMENDMENT

L&T Hydrocarbon Engineering Limited

Enclosure to AMENDMENT NO.: 001 dated 08.12.2020to PO NO. Petrochemicals/75000-65110/AG dated 05.02.2020

ANNEXURE - I

Item No	Material/ Service Code	Material / Service Description	FROM				TO			
			Total PO Quantity	Unit	Rate / Unit ()	Item Total Value ()	Total PO Quantity	Unit	Rate / Unit (INR)	Item Total Value (INR)
1	MXXDOCKLEV **HSN CODE : 84289090**	#Dock Leveller#	1	EA	473800.00	4,73,800.00	No Change	No Change	No Change	No Change
		Total Quantity	1				1			

Total Value (Rounded off to) : 4,73,800.00 INR **4,73,800.00**

Four Lakh Seventy Three Thousand Eight Hundred only.

For L&T Hydrocarbon Engineering Limited

Asit Kumar Mishra
JOINT GENERAL MANAGER 9/12/20

L.C.: 08.12.2020 12:12:42

PURCHASE ORDER AMENDMENT

L&T Hydrocarbon Engineering Limited

ANNEXURE - I

Enclosure to AMENDMENT NO.: 001 dated 08.12.2020 to PO NO. Petrochemicals/75000- 65110/ AG dated 05.02.2020

Item No	FROM		TO	
	Schedule Quantity	Delivery Date	Schedule Quantity	Delivery Date
1	1.000	15.04.2020	No Change	15.12.2020

REASON FOR AMENDMENT

Amendment Number:- 001
PO has been amended for below reason.

1) Contractual delivery date (CDD) extended till 15.12.2020.

2) M/s Nihva shall provide 02 days free site supervision to M/s LTHE. Site supervision charges inclue accomodation and food for 01 person.

Note: Travel charges for Train AC 2 Tier / Economy Class Air Fair shall be reimbursed by M/s LTHE at actual.

3) M/s Nihva shall submit Performance Bank Guarentee (PBG) of amount Rs. 40,000/- valid till 02 years from date of dispatch as per the enclosed format (Refer attachment -1) from LTHE approved bank (Refer attachment -2).

ALL OTHER TERMS, CONDITIONS AND DETAILS REMAIN UNALTERED.

Attachment -1 (BANK GUARANTEE FOR PERFORMANCE)

This Deed of Guarantee made at _____ on the _____ day of _____ 200___ by the _____ (name of the bank and branch with address), hereinafter called “the Bank” (which expression shall, unless repugnant to the context or meaning thereof, include its successors and assigns) of the one Part, in favour of L&T HYDROCARBON ENGINEERING LIMITED, having its Registered office at L&T House, Ballard Estate, Mumbai-400 001, hereinafter called "the Purchaser" (which expression shall, unless repugnant to the context or meaning thereof, include its successors and assigns) of the other part :

WHEREAS

i) Pursuant to Offer No._____ dated_____ from M/S _____ having its registered office at _____ (hereinafter called "the Vendor") and Purchase Order No._____ dated _____ from the Purchaser, a Contract was concluded between the Vendor and the Purchaser for _____ _____ (hereinafter called "the Equipment") for (project description), on the terms and conditions mentioned in the said correspondence (hereinafter called “the Contract" which expression shall include all amendments, modifications and/or variations thereto, as mutually agreed between the parties thereto).

ii) Under the provisions of the said Contract, the Vendor has agreed to furnish to the Purchaser the security by way of Bank Guarantee for Rs. (or relevant currency) _____ (*value in figures*) (_____) (*value in words*), being the amount equivalent to _____ % of the value of the Contract, for due fulfilment by the Vendor of its Contractual obligations under the said Contract.

iii) In consideration of the aforesaid and at the request of the Vendor, the Bank has agreed to furnish such Bank Guarantee to the Purchaser, as hereinafter appearing.

NOW THIS INDENTURE WITNESSETH as follows: -

1)The Bank do hereby irrevocably undertakes to pay at Mumbai, India, without any protest or demur or proof or condition and without reference to the Vendor any and all amounts demanded from time to time, to the Purchaser, forthwith on the first demand in writing, up to an amount not exceeding Rs. _____ (or relevant currency) (*value in figures*) (_____) (*value in words*) against any loss or damages caused to or suffered or would be caused to or suffered by the Purchaser, by reason of non-fulfilment of the obligations including warranty / defect liability obligations under the said Contract on the part of the Vendor and further agrees to indemnify and keep the Purchaser indemnified against all costs, charges and expenses whatsoever, which the Purchaser may incur by reason of the Vendor

failing to fulfil the obligations including warranty / defects liability obligations under the said Contract.

2) Any demand so made on the Bank shall be conclusive as regards the amount due and payable by the Bank under the Guarantee. The Bank waives in favour of the Purchaser, all rights, defences and pleas, which the Bank, as Guarantors and/or the Vendor, may be entitled to. To give effect to this guarantee, the Bank shall be deemed to be the principal debtor.

3) The Bank further agrees that the Purchaser shall be the sole judge whether the Vendor has committed any breach of its warranty / defects liability obligations or breaches of any of the terms and conditions of the Contract and the extent of loss, damages, costs, charges and expenses suffered or incurred or would be suffered or incurred by the Purchaser on account thereof.

4) The liability of the bank to the purchaser under this undertaking shall remain in full force and effect notwithstanding the existence of any difference or dispute between the vendor and the purchaser, the vendor and / or the bank and/or the bank and the purchaser or otherwise howsoever touching or affecting these presents or the liability of the vendor to the purchaser, and notwithstanding the existence of any instructions or purported instructions by the vendor, or any other person to the bank not to pay or for any cause withhold or defer payment to the purchaser under these presents, with the intent that notwithstanding the existence of such difference, dispute or instruction, the bank shall be and remain liable to make payment to the purchaser in terms thereof

5) The Bank further agrees that the Guarantee herein contained during its currency and any extension thereof, shall remain in force and continue to have full effect until the obligations including warranty / defect liability obligations under the said Contract are fulfilled by the Vendor.

6) Should it be necessary to extend the Guarantee or a portion of the Guarantee beyond the date of expiry of this Bank Guarantee on account of extension of time being granted by the Purchaser to the Vendor for the due fulfilment of the obligations under the said contract by the Vendor, the Bank undertakes to extend the period of this Guarantee until such time as may be reasonably required.

7) The Bank further agrees with the Purchaser that the Purchaser shall have the fullest liberty without Bank's consent and without affecting in any manner the Bank's obligations hereunder, to vary any terms & conditions of the said Contract or to postpone for any time or from time to time any of the powers exercisable by the Purchaser against the Vendor and to forbear or enforce any of the terms and conditions relating to the contract and the Bank further agrees that it shall not be relieved from its liability by reason of any such variations in the terms and conditions or for any forbearance, act or omission on the part of the Purchaser or any indulgence by the Purchaser to the Vendor or by any such matter or things whatsoever, which under the law relating to sureties as would, but for this provision, have effect of so relieving the Bank.

8) This Guarantee is effective from the date herein written above and the Bank further undertakes not to revoke this Guarantee during its currency, except with the previous consent in writing from the Purchaser.

9) This Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees heretofore given to the Purchaser by the Bank (whether jointly with others or alone) and now existing uncancelled and that this Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.

10) This Guarantee shall not be affected by any change in the Constitution of the Vendor or by the Bank nor it be affected by any change in the Purchaser's Constitution or of any amalgamation or absorption thereof or therewith, but will inure for and be available to and enforceable by the absorbing or amalgamated company or concern.

11) This Guarantee will remain valid until and including the _____ day of 200___ or any extension thereof, provided that unless a demand under this Guarantee is made by the Purchaser against the Bank within six months from the date of the expiry of this Guarantee, all rights of the Purchaser under this Guarantee shall be forfeited and the Bank shall be relieved and discharged from all liabilities under this Guarantee.

12) Without prejudice to any other mode of service, a demand or claim or other communication may be transmitted by the purchaser to the bank either by post or by fax. if transmitted by fax, the transmission shall be complete as soon as acknowledged by the bank.

13) This Guarantee / Undertaking shall be governed by and construed in accordance with Indian Laws.

14) NOTWITHSTANDING ANYTHING CONTAINED HEREIN

i) Our liability under this Bank Guarantee shall not exceed the sum of Rs./ (relevant currency) (*value in figures*) (_____) (*value in words*).

ii) This Bank Guarantee shall be valid until _____ (date).

iii) We are liable to pay the Guarantee amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before _____ (date of six months from the date of expiry of the guarantee).

IN WITNESS WHEREOF the Bank, acting through its constituted Attorney has executed these presents, in the name and on behalf of the Bank, on the date written herein above.

AUTHORISED OFFICER OF THE BANK
Name :
Designation :
Bankers' stamp :

(**NOTE:**
1. Not to be attested
2. Stamp duty on this Guarantee will be as on an Agreement in accordance with the local stamp law in force in the State in which this Guarantee is executed).

Attachment – 2 (List of Approved Banks)

A) NATIONALISED BANKS

1. ALLAHABAD BANK
2. ANDHRA BANK
3. BANK OF BARODA
4. BANK OF INDIA
5. BANK OF MAHARASHTRA
6. CANARA BANK
7. CENTRAL BANK OF INDIA
8. CORPORATION BANK
9. DENA BANK
10. INDIAN BANK
11. INDIAN OVERSEAS BANK
12. ORIENTAL BANK OF COMMERCE
13. PUNJAB NATIONAL BANK
14. PUNJAB AND SIND BANK
15. STATE BANK OF BIKANER
16. STATE BANK OF HYDERABAD
17. STATE BANK OF MYSORE
18. STATE BANK OF INDIA
19. STATE BANK OF INDORE
20. STATE BANK OF PATIALA
21. STATE BANK OF SAURASHTRA
22. STATE BANK OF TRAVANCORE
23. SYNDICATE BANK
24. UNITED COMMERCIAL BANK
25. UNION BANK OF INDIA
26. UNITED BANK OF INDIA
27. VIJAYA BANK

B) PRIVATE SECTOR BANKS

1. AXIS BANK LTD
2. KOTAK MAHINDRA BANK LTD
3. ICICI BANK LTD
4. HDFC BANK LTD
5. YES BANK LTD
6. INDUSIND BANK LTD
7. IDBI BANK

C) FOREIGN BANKS

1. CITI BANK
2. HSBC BANK
3. BANK OF AMERICA
4. STANDARD CHARTERED BANK
5. BNP PARIBAS
6. CREDIT AGRICOLE CIB
7. DBS BANK
8. DEUTSCHE BANK
9. ROYAL BANK OF SCOTLAND (ABN AMRO BANK)
10. BANK OF TOKYO MITSUBISHI
11. MIZUHO CORPORATE BANK
12. ANZ BANK (AUSTRALIA & NEW ZEALAND BANK)
13. BARKLAYS BANK
14. JP MORGAN CHASE
15. CREDIT SUISSE
16. ING VYSYA BANK
17. UNITED OVERSEAS BANK

PIs NOTE :

Original bank guarantee must be issued from Indian correspondent Bank of foreign vendor.